

Dr. Rajasi @ Swapna W/O Shashank Dandge vs Dr. Shashank S/O Vitthalrao Dandge on 6 January, 2015

Author: Mridula Bhatkar

Bench: B.R. Gavai, Mridula Bhatkar

FCA 166/14

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY,

NAGPUR BENCH, NAGPUR.

FAMILY COURT APPEAL No. 166/2014
WITH

CROSS OBJECTION ST. No. 5743/2014

Dr. Rajasi @ Swapna w/o Shashank Dandge,
aged about 30 yrs, Occ. Doctor,
c/o Mr. Uttam Madhav Waghmare,

Mayur Niwas, Ramdasnagar,
Karegaon Road, Parbhani.

igVERSUS.....

Dr. Shashank s/o Vitthalrao Dandge,

Aged 33 yrs, Occ. Doctor,
r/o 'Asha', V-42, Narendra Nagar,
Nagpur.

APPEL

RESPON

Shri A.V. Bhide, counsel for the appellant.

Shri A.C. Dharmadhikari, counsel for the respondent/Cross Objector.

CORAM : B.R. GAVAI AND

MRS.MRIDULA BHATKAR, JJ.

DATE : 6 TH JANUAR Y ,

ORAL JUDGMENT (PER:MRS.MRIDULA BHATKAR, J.)

This first appeal is directed against the judgment and order dated 26.08.2011 passed by the Judge, Family Court No.3, Nagpur in petition No.A-263/2007 thereby passing the order of dissolution of the marriage between the parties on the ground of cruelty.

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2. The appellant-Wife and the respondent-Husband, both, are Doctors by profession. (hereinafter the appellant-wife and the respondent-husband are referred to as per their marital status, i.e. Wife and Husband, for the sake of brevity and convenience). Their marriage was settled on 18.06.2006. It was an arranged marriage.

On 16.12.2006, the marriage was solemnized and both went to Ooty for their honeymoon thereby the marriage was consummated.

However, there were few clashes at Ooty between the parties and after their return, the Wife went to her maiden home at Parbhani in the month of January-2007. The Husband and his family members found abnormal traits in the behaviour of the Wife. There was an apprehension that she would commit suicide anytime and, thereafter, he went to Parbhani in the third week of January-2007 along with his family members and friends. The Wife gave a written undertaking that she would behave properly and would not do any eccentric act. Her parents' family friends also signed on that undertaking dated 21.01.2007 and, thereafter, she came and started residing with the Husband and his family members. The father of the Husband is a reputed doctor from Nagpur and the family is well off. In February-2007, the behaviour of the Wife was not normal FCA 166/14 3 Judgment and in the second week of March-2007, she tried to commit suicide and, therefore, the Husband lodged a report with the police and she was sent to her maiden home. When she tried to come back in the month of March-2007, she was not allowed by the Husband and his father and since then, the Wife has been staying with her parents at Parbhani. The Husband filed a petition for nullity of marriage under Section 12(1)(c) of the Hindu Marriage Act, 1955 on 24.04.2007 on the ground of fraud that if he would have been aware of suicidal traits in the wife, he would not have married her. In the same

petition, he alternatively prayed for grant of a decree of divorce on the ground of cruelty.

3. The Wife after service of summons appeared before the Family Court, Nagpur. She denied all the allegations and the contentions raised in the petition and she countered that the family of the Husband had demanded dowry from her father and her father had paid dowry of Rs.1,25,000/- (Rupees One Lac Twenty Five Thousand only) at the time of marriage. Moreover, at the time of honeymoon at Ooty, as all the money was exhausted, the Husband asked her to take out an amount of Rs.3,000/- (Rupees Three FCA 166/14 4 Judgment Thousand only) from her account through A.T.M. and at that time, as she was late due to the rush, however, he shouted at her. It was further contended that the allegation of having the suicidal tendency is utterly false and baseless and there is no good ground to allow the petition.

4. Both the parties entered the witness box and were subjected to cross-examination. The Husband examined his father Vitthalrao Punjaji Dandge and one Ramchandra Namdeorao Patne, who was a family friend and who went to Parbhani along with the Husband.

5. The Wife examined Satish Sambhajirao Wankhedkar, her maternal uncle, on the point of treatment given by the family members of the husband to her and the father of the wife. She also examined one Padmakar Parshuram Babre as a signatory to Exhibit 37, the Vachanpatra, dated 21.01.2007 that she was not willing to sign the undertaking but, she signed under pressure.

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6. Considering the evidence, the learned Judge, Family Court, though rejected the case of the husband on the ground of nullity of marriage, granted relief of dissolution of marriage on the ground of cruelty. Hence, this appeal.

7. Shri Bhide, the learned counsel for the Wife, has submitted that the learned Judge, Family Court has committed an error in granting the divorce on the ground of cruelty. He raised a legal point of the competency of the learned Judge, Family Court of entertaining the said marriage petition under Section 14 of the Hindu Marriage Act. The marriage was solemnized on 16.12.2006 and the petition for divorce on the ground of cruelty was filed on 24.04.2007, i.e. within one year from the date of the marriage.

Under Section 14, the petition for divorce is required to be presented after one year and, therefore, the learned Judge, Family Court was not competent to entertain such petition for dissolution of marriage by a decree of divorce. He further submitted that a petition for divorce can be entertained, if filed within one year of the marriage under the proviso to Section 14 subject to a separate application made by the party in accordance with the rules made by FCA 166/14 6 Judgment the High Court making out a case of exceptional hardship. In support of his submissions, he relied on the rules made under notification of the Bombay High Court, dated 12.11.1955. He relied especially on rule 10 thereof, wherein an application for leave under Section 14 of the Hindu Marriage Act is necessary if the petition for divorce is presented within one year of marriage. He submitted that the petition is filed in deviation of these rules and the mandatory provisions in the section and,

therefore, it was not maintainable. In support of his submissions, he relied on the case decided by the Division Bench of Karnataka High Court in Smt. Jacintha Kamath Versus K. Padmanabha Kamath, reported in AIR 1992 Karnataka 372 and also on the judgment of Karnataka High Court in Sharma M. Kashinath Versus Shobha, reported in I (2011) DMC 457 (DB).

8. The learned counsel for the Wife on merits has submitted that the learned Judge, Family Court has rightly dismissed the petition on the ground of nullity of the marriage, however, gave erroneous finding on the point of cruelty. He submitted that after the settlement of the marriage in June-2006, the Husband met with an accident in August-2006 and at that time, the Wife went from FCA 166/14 7 Judgment Parbhani to Nagpur and attended him in hospital as he was unconscious for long time. She supported him at the time of recovery. Prior to marriage, the wife and the husband met on number of occasions especially at the time of purchasing and the Husband did not observe any abnormal behaviour of the Wife. He submitted that the Wife does not have suicidal tendency though admittedly there was an incident of 1996. She tried to commit suicide after having fight with her mother when she was 14-15 years old. However, that was an incident ten years back and is unnecessarily capitalized by the Husband in order to get divorce from the wife. He submitted that at no point of time, the Husband or his family members took her for medical treatment if at all she was suffering from psychological disorder. He argued that the Wife did not make allegations of any nature against the husband as she really wants to cohabit with him. He further relied on the evidence of Padmakar Babre, who has deposed that undertaking (Vachanpatra) Exhibit 37 dated 21.01.2007 was obtained under coercion. He further pointed out that Exhibit 38 is a police report.

However, there are two dates put on the report. On the front page, the date is mentioned as 20.02.2007, however, at the end the date is FCA 166/14 8 Judgment mentioned as 18.01.2007. He submitted that in the report, it was mentioned that she left the house in the month of January and she had been residing at Parbhani. However, on 20.02.2007, she was in fact residing with the Husband and his family members. Thus, the say of the Husband is not to be relied as he was not truthful. He further pointed out that she was ousted from the house on 13.03.2007 and it was an act of cruelty on the part of the Husband.

No ground of cruelty is established in any manner by the husband against the Wife and, therefore, the judgment of the Judge, Family Court deserves to be set aside.

9. Shri Dharmadhikari, the learned counsel for the Husband, while meeting with the legal submissions on the point of maintainability of the petition, argued that a relief of divorce was prayed in the petition filed for nullity under Section 12 of the Hindu Marriage Act which requires a petition to be filed within one year.

He submitted that though a relief of divorce on the ground of cruelty was prayed, the learned Judge has rightly held that after filing of the petition when the judgment was delivered, i.e. on 16.08.2011, a period of nearly five years was passed. The provision FCA 166/14 9 Judgment of not entertaining the petition within one year is not mandatory.

He submitted that the learned Judge of the Family Court has discussed the evidence in correct perspective and the judgment of dissolution of marriage on the ground of cruelty is legal. In support of his submissions, he relied on the judgment of the Division Bench of the Bombay High Court in the case of Mr.X Versus Mrs.Y, reported in 2010(1) Mh.L.J. 696.

10. On merit, the learned counsel further submitted that both the parties have been living separately since March-2007.

There was a separation of more than 4½ years when the Judge, Family Court decided the matter. He submitted that in marriage, a separation is the vital aspect. Therefore, the findings are not erroneous. The learned counsel further submitted that the Husband has deposed that he was living under the threat that his wife is going to commit suicide. Earlier, there was an incident of 1996 when she attempted to commit suicide. The medical papers to that effect are produced and relied by the Husband. After the marriage though there was a short span of their living together, he noticed her behaviour was hysteric. The Husband was scared of her behaviour FCA 166/14 10 Judgment and was continuously under pressure. He further submitted that on 21.01.2007, the Husband and his family members went to Parbhani and brought her back after she gave written undertaking. However, again on 13.03.2007, she suddenly locked herself in the bedroom, tied dupatta to the ceiling fan, arranged a stool and said bye bye to everybody and did not respond for long time though the family members were banging the door. The learned counsel submitted that this behaviour was abnormal and, therefore, these are the instances of the cruelty. He further submitted that if the earlier incident of 1996 of the wife trying to commit suicide would have been informed to the Husband before marriage, then he would not have married her. He submitted that it is a case of fraud and, therefore, the Husband in his cross-objection has prayed that the marriage is to be declared a nullity or alternatively the appeal filed by the wife be dismissed.

11. So far as the objection in respect of the competency of the Court and the maintainability of the petition is concerned, Section 14 of the Hindu Marriage Act specifically places a bar on filing the petition for divorce within one year of the date of the marriage. Section 14 of the Hindu Marriage Act reads as under:

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14. No petition for divorce to be presented within one year of marriage.-- (1) Notwithstanding anything contained in this Act, it shall not be competent for any Court to entertain any petition for dissolution of a marriage by a decree of divorce, 28[unless as the date of the presentation of the petition one year has elapsed] since the date of the marriage:

Provided that the Court may, upon application made to it in accordance with such rules as may be made by the High Court in that behalf, allow a petition to be presented 29[before one year has elapsed] since the date of the marriage on the ground that the case is one of exceptional hardship to the petitioner or of exceptional depravity on the part of the respondent, but, if it appears to the Court at the hearing of the petition that the petitioner obtained leave to present the petition by any

misrepresentation or concealment of the nature of the case, the Court may, if it pronounces a decree, do so FCA 166/14 12 Judgment subject to the condition that the decree shall not have effect until after the 30[expiry of one year] from the date of the marriage or may dismiss the petition without prejudice to any petition which may be brought after the 31[expiration of the said one year] upon the same or substantially the same facts as those alleged in support of the petition so dismissed.

ig In disposing of any application under this section for leave to present a petition for divorce before the 32[expiration of one year] from the date of the marriage, the Court shall have regard to the interests of any children of the marriage and to the question whether there is a reasonable probability of a reconciliation between the parties before the expiration of the 33[said one year].

In the case of Jacintha (Supra), the Division Bench of Karnataka High Court observed that the marriage is not to be allowed to be dissolved hurriedly without giving an opportunity or minimum time for making the marriage a success. However, the FCA 166/14 13 Judgment main issue before the Division Bench was in respect of validity of filing the petition under Section 13 of the Hindu Marriage Act when one of the spouses in the said marriage was Christian and it was a Christian marriage. Thus, the said case is distinguishable. In the case of Sharma M. Kashinath(Supra), the Division Bench has held that no petition is to be presented within one year of the marriage and the provision of leave under Section 14 if it is to be filed within one year is mandatory. The Division Bench has taken a different view from the Division Bench of Calcutta High Court in the case of Ravindranath Mukherjee Versus I.T.I. Mukherjee @ Chatterjee, reported in 95 CWN 1085.

12. The learned counsel for the husband pointed out judgment of the Calcutta High Court in Smt. Priyanka Maity (Ghosh) Versus Sabyasachi Maity, reported in Manu/WB/0977/2012, dated 14.05.2012. A principal issue before the Hon'ble Single Judge of Calcutta High Court was whether Section 14 is mandatory or directory especially when the petition is presented prior to the expiry of period of one year since the date of marriage. In the said case, the Hon'ble Single Judge has referred FCA 166/14 14 Judgment the case of Ravindranath Mukherjee/I.T.I. Mukherjee reported in Manu/WB 0233/1991 decided by the Division Bench of the Calcutta High Court, wherein the Division Bench has held that the provision is directory and not mandatory.

13. The object of not entertaining the petition presented within one year of the date of the marriage is laudable discouraging hasty decision on the part of the spouses. Any relationship cannot be built up within a short span much less a lifelong relationship of a marriage, which obviously needs adequate longer time to read, know and understand each other. A couple should not be impatient and judgmental about each other and no steps in hurry to be taken.

Therefore, a minimum period of one year treated as a "Probation Period" and, thereafter the parties are free to take legal steps if they want against each other. If a petition is filed hurriedly then a relationship gets spoiled and become worse and some possible chances of coming together may

vanish. If one of the spouses approaches the Court then the other party is bound to develop a bitterness, there may be a feeling of humiliation, distrust and the relationship will be spoiled speedily. Thus, to arrest this damage to FCA 166/14 15 Judgment their nuptial relationship, the legislature has put this bar of Section

14. However, this provision is required to be read along with the proviso to Section 14. Proviso is an exception to the main statute.

Undoubtedly, proviso cannot dilute the spirit of the main statute, however, it facilitates the parties to act in exceptional circumstances deviating the section so also creates ground for the Court/Authority to entertain the prayer of the parties under special circumstances as mentioned in it. Proviso to Section 14 states that if the party makes out a case of exceptional hardship or exceptional depravity on the part of the party, then such petition can be allowed. The proviso does not stop there but, takes care of the principal statute stating further that if leave is obtained by any misrepresentation or concealment of the facts, then the Court if pronounces a decree, do so subject to the condition that decree shall not have effect until after the expiry of one year from the date of the marriage or may dismiss the petition.

14. In sub Section 2 of Section 14, while deciding the application for leave, the Court is directed to take into account the interest of the children if at all born out of the wedlock and also FCA 166/14 16 Judgment examine any probability or reconciliation between the parties.

Thus, the bar of one year for presentation of the marriage petition is made entirely with a view to give time to the parties for reconciliation and the proviso sufficiently insulates the object of the principal statute.

15. Admittedly, in the present petition, no application for leave was filed because the petition was filed under Section 12(1)

(c) of the Hindu Marriage Act for nullity of the marriage, which reads as follows:

12(1)(c) : Voidable marriages.- (1) Any marriage solemnized, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds, namely :--

[(a) that the

(b)

(c) that the consent of the petitioner, or where the consent of the guardian in marriage of the petitioner 13[was required under section 5, as it FCA 166/14 17 Judgment stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978], the consent of such guardian was obtained by force 14[or by fraud as to the nature of the ceremony or as to any material fact or

circumstance concerning the respondent]; or

(d).....

16. A petition was not filed for divorce under Section 13(1) (ia) of the Hindu Marriage Act on the ground of cruelty. Section 14 is applicable to a petition for divorce which is filed under Section 13 of the Hindu Marriage Act and not a petition for nullity under Section 11 or 12. Nullity of marriage is altogether of different status than divorce. Therefore, if there is a prayer for nullity of marriage, the petition is to be presented within one year as sub-Section 2 of Section 12 lays down that no petition for annulling a marriage on the ground specified in Clause (c) of Sub-Section 1 shall be entertained if (i) petition is presented more than one year after the force has ceased to operate or as the case may be, the fraud has been discovered. Thus, the petition was filed not under Section 13 FCA 166/14 18 Judgment for divorce but, for nullity under Section 12. Filing of the petition within one year from the discovery of the fraud or after the force has been ceased to operate is mandatory and, therefore, the petition was rightly filed within time under Section 12. However, in the said petition, there is an alternative prayer for divorce on the ground of cruelty. In the petition, there are averments in respect of the instances of cruelty and, therefore, alternative relief of divorce is prayed as the marriage was consummated between the parties.

Alternative prayer of divorce in the petition for nullity is neither contrary nor inconsistent and can be entertained by the Court. The Judge, Family Court is not found at fault taking view that the Court when heard the matter and the evidence of the parties was recorded found that the parties were residing separately since March-2007, i.e. for more four years so far under Section 14 will not come in the way. We are in agreement with the pragmatic approach taken by the learned Judge, Family Court while entertaining the petition under Section 13(1)(ia) though it was presented within one year from the date of the marriage. One important point is also to be noted that if a party wants to seek an alternative relief for grant of decree of divorce in a petition for nullity of marriage filed within FCA 166/14 19 Judgment one year, then it will be cumbersome for the party to file another petition for divorce after one year. This leads to multiplicity of the proceedings. Hence, the prayer for divorce can be made alternatively in the petition for nullity if filed within one year. If nullity prayed, itself makes an exceptional hardship. In the case of Mr.X (Supra), the petition was filed before the expiry of one year from the date of the marriage on the ground of cruelty. Leave was granted by the trial Court. In paragraph 7, the Division Bench held that "the trial Court has rightly granted the leave and it was held that the appellate Court will not interfere with the trial Judge's discretion unless he has proceeded on a wrong principle of law, or failed to have regard to some material consideration or some gross injustice has occurred". Needless to mention that after all it is left to the Judge, Family Court to consider whether the parties have an exceptional hardship and prima-facie the petition can be entertained for nullity under Section 12(1)(c). There should not be routine practice to file a petition for nullity and put an alternative prayer for divorce under Section 13 giving a go-bye to the statutory provision under Section 14 of the Hindu Marriage Act.

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17. On merit, we have gone through the evidence of the witnesses, especially the evidence of the wife and the husband. We have to deal with the following two points on the issue of divorce under Section 13(1)(ia).

1) Whether the wife has shown eccentric behavioural traits and tendency to commit suicide ?

2) Whether the repeated threat to commit suicide amounts to cruelty or not ?

18. The husband has deposed about their stay at Ooty when they went for honeymoon. He deposed that he noticed a strange behaviour of the wife. She threw tantrums, abused him screaming at the top of her voice. There were quarrels during their stay. When he had taken her for dinner at Koimboor, at the midst of the dinner, she walked off the hotel and did not return for half an hour and she did not tell what she was doing and where she was. There she threatened him that she would commit suicide if at all he would question her more. On his return, he informed about the behaviour of his wife to his family members. When the husband and his family FCA 166/14 21 Judgment members asked her about her behaviour, she was angry and she threatened if such allegations are made, she would end her life and for which husband and his family members would be blamed. It is further deposed by the husband that he and his father both being doctors, they realised that there was a psychological problem with the wife so they talked with the parents of the wife. The parents came to Nagpur and after their meeting, husband found that wife and her parents have suppressed material facts from him that wife had behavioural problem in the past. She had tried to commit suicide in the year 1996. However, there was a constant denial from the parents and the wife about her abnormal behaviour and they took her to Parbhani. Thereafter in January-2007, they all went to Parbhani and on her giving written undertaking about her good behaviour in the presence of the family members of both the parties, she was brought to Nagpur. However, on 13.03.2007, when the family members were discussing and chatting, she suddenly got up, said bye to everybody, went to bedroom and tried to commit suicide by tying dupatta to the ceiling fan. The husband requested her to open the door as the door was locked from inside. Finally he broke open the door and everybody was shocked to see a dupatta was tied FCA 166/14 22 Judgment to a ceiling fan and arrangements made by her. She was standing on the chair to commit suicide. So the husband gave complaint to the police and thereafter she went to her maternal home and has been staying there.

19. Per contra, the evidence of the wife is of total denial.

She denied all the allegations and while refuting these allegations, she has mentioned that making such allegations itself is a cruelty and she is a normal person. The husband and his family members were not happy with her because her father could not give good gifts at the time of the marriage to the family members of the husband but, dowry of Rs.1,25,000/- (Rupees One Lac Twenty Five Thousand only) was paid and she relied on the incident of exhausting the money when they were on honeymoon and this led to quarrel between the parties.

20. In the cross-examination of the husband, a suggestion was given that the father of the husband paid Rs.1,00,000/- (Rupees One Lac only) by Demand Draft towards the marriage expenses which

was admitted by the husband.

FCA 166/14 23 Judgment However, he refused that all the expenses of the marriage were borne by the father of the wife. The parents of the husband also shared the expenses. He has admitted that he did not take the wife to the psychiatrist. However, he volunteered that she was not ready. In the evidence of the wife, she has deposed that after their engagement on 18.08.2006, her husband met with a road accident and was severely injured. So she attended him throughout when he was in I.C.U. She also stayed there for two days with husband's family after his discharge. She deposed that she went to the husband's house for purchasing before marriage and there was a smooth relationship with husband's family. She stated that the parents of her husband harassed her by hiding mobile and they were not allowing her to talk with her husband and they demanded money and articles from her parents. However, she opposed and, therefore, they blamed that she has a mental disorder and she behaves abnormally. In her cross-examination, she was asked about the earlier incident of suicide on 04.09.1996 and she stated that she had disclosed this incident to her husband and his father prior to the marriage.

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21. Thus, the husband has stated in the evidence that there were two incidents of her attempt to commit suicide, one has taken place in 1996, i.e. ten years prior to the marriage. In corroboration, the Medico-Legal Certificate and the medical papers marked as Article 'A' were produced. On a perusal of the Medico-Legal Certificate, we found that the history of suicide was mentioned and the wife had cut the veins of her wrist and attempted to commit suicide. So she was admitted in the hospital. There is no justifiable reason given to lessen the rigour of the act of committing suicide and, thus, the fact remains that there was one incident of committing suicide in the past. It is true that this incident has taken place long back, i.e. ten years prior to the marriage and, therefore, it is a past which is to be forgotten and it is to be taken into account that at the relevant time, she was hardly 14-15 years old and was not mature to understand the consequences of her act. Moreover, when the husband came to know about this incident and had experienced her abnormal behaviour at the time of honeymoon, continued to keep a matrimonial relationship with her for a period of three months thereafter. Though as per the case of the husband, the wife went to Parbhani in her maiden home in January-2007 due FCA 166/14 25 Judgment to the quarrels between the parties, the husband and his family members went to Parbhani on 21.01.2007 and after taking written undertaking from her that she would behave properly and would not be eccentric, they brought her back.

22. Exhibit 37 is the said written undertaking given by the wife. It is true that in the said undertaking, there is no whisper about her traits of committing suicide, however, there is a mention that she would not be hysteric and would not do any act which would hurt her body and mind. Thus, it cannot be said that this undertaking was obtained under coercion. The evidence of a witness Shri Padmakar Babre that when he was present prior to the meeting, on that day, he found that the husband was threatening wife that she should sign the undertaking otherwise he would not take her to Nagpur, cannot be given weightage in view of the contents in writing and as he is a relative of the father of the wife.

On the undertaking not only the wife signed but the signatures of the members of both the family appear. This corroborates the apprehension in the mind of the husband that the wife would take any drastic action to harm her body. Two reports made by husband FCA 166/14 26 Judgment to the police, i.e. Exhibit 38 dated 20.02.2007 and Exhibit 39 dated 16.03.2007, are placed on record. In these reports, the husband has informed the police about the behaviour of the wife and especially her constant threat to commit suicide. The learned counsel for the wife has pointed out that there is a discrepancy in the date, i.e. Exhibit 38. On the last page, it is mentioned as 20.02.2007 and earlier it is mentioned as 18.01.2007. Accordingly, a suggestion was put to the husband that this report was not written in fact on 20.02.2007 but, on 18.01.2007. After going through the contents of the said report, though we accept that the said report Exhibit 38 might have been written and prepared on 18.01.2007 by the husband and his family members, however, it was not handed over to the police immediately but, it was given on 20.02.2007. At the most, it will show that on 18.01.2007, the husband wanted to approach the police, however, he prevented himself taking such immediate action. In the matrimonial relationship, on many occasions action of the spouse depends on the reaction of the other spouse and there cannot be accurate predictions about such responses. The trial Court has rightly discarded the prayer of nullity of marriage under Section 12(1)(c) of the Hindu Marriage Act in FCA 166/14 27 Judgment view of the evidence tendered and the facts placed on record.

Though it is considered that the fact that she admitted to commit suicide was suppressed, it was an old incident of 1996. A life flows, a person grows and his thinking changes. At the time of honeymoon, when there was a first outburst of the wife and she expressed that she would commit suicide, though husband was disturbed he continued the relationship with her as wife and, therefore, he went to Parbhani on 21.01.2007 and brought her back after obtaining the written undertaking. He made effort to continue and save the marriage. This definitely has condoned the force in the allegations of suppression of the alleged facts and, therefore, the finding given by the trial Court on nullity need not be disturbed.

23. The circumstances in this case are peculiar as a time period spent together is hardly four months. The reason given for alternative prayer for divorce is that threats were given by the wife to commit suicide. The husband has tendered oral as well as documentary evidence to show that the wife has attempted to commit suicide. As observed earlier, the incident in the past not to be stuck to the present behaviour of the wife and that is to be FCA 166/14 28 Judgment detached. However, the evidence shows that the wife repeated that she would commit suicide if husband would question her.

Thereafter, in a short period of one month, she threatened him that she would commit suicide. After marriage, it is expected that the couple is in happy and good mood and should be caring towards each other. If such threats of suicide are given by either of the spouses to the other party then it is definitely shocking and it shatters the basic foundation of the trust between the two human beings. When wife tells that she would commit suicide if at all there is any questioning or opposition to her then it is a more scary situation for the husband when the penal provisions under Section 498-A and 304-B of the Indian Penal Code are in force against the husband. Indeed these are necessary provisions which are protective in nature and take care of the life and interest of the women and newly wedded brides against the ill-treatment and harassment at the hands of the husband and his

family members.

However, repeated utterance of committing suicide without any good rhyme or reason pushes the husband under the continuous mental pressure of possible prosecution under the Indian Penal Code. We would like to distinguish a behaviour of such type under FCA 166/14 29 Judgment Section 13(1)(ia) and under Section 13(1)(iii). Section 13(1)(iii) speaks about a party, who is suffering from incurable unsound mind or has continuous or intermittent mental disorder. Mental and psychopathic disorder both are defined under the explanation clause. In the present case, there is no such concrete evidence whether wife was suffering from mental or psychopathic disorder.

However, the instances of repeated utterance of threat to commit suicide are brought on record. We are aware that if a couple is illiterate or is not aware of the legal consequences of such utterances, the husband will not treat these utterances of threat as a cruelty. However, on the other hand, if the couple is educated then the wife and husband are presumed to be aware of the legal consequences of the acts done by either of the parties. If such repeated threats are given by wife and if the preparations for suicide are made, though having no intention to commit but, with an intention to create a pressure or with a view to gain the expected result from the husband, then it amounts to cruelty. Such repeated utterance of committing suicide is a scarecrow to the husband. In such cases, the impact of the threats or utterances on the husband matters as he is aware of the legal consequences of such act. The FCA 166/14 30 Judgment husband knows that if his wife commits suicide or attempts to commit suicide, then he will be definitely roped in the offences of Section Section 304-B or 498-A of the Indian Penal Code and then continues to live in a shadow of unspoken fear. A solitary instance can be considered as a outburst of the anger or frustration.

However, if such threats are given intermittently in short span of one month and repeatedly thereafter in three months, then the husband definitely suffers a psychological trauma of remaining under constant fear that his wife is likely to commit suicide if things go against her. It is not the case that there was a solitary incident of threat but, the incident was repeated. No finger print of a human being is same to the other. Similarly every mind thinks, acts, responds differently than the other in the same situation. Therefore, while judging the cruelty, the Courts need to consider the impact of the act of one party on the mind of the other party. There may be couples fighting with each other everyday. There may be wives giving threats intermittently to their husband of committing suicide.

However, if at all the parties love each other and are residing with each other for a long time then the parties are used to each other and the impact of such threats may be different. After all, cruelty is FCA 166/14 31 Judgment a relative term and varies from the class, education, region, financial status, etc.

24. The learned Judge, Family Court has analyzed the evidence in proper perspective and has not committed any error in holding that there is a cruelty on the part of the wife and has rightly passed the judgment of dissolution of marriage. It is also to be considered that by way of counter, no satisfactory explanation has come from the wife. If there was no such ground then as to why the husband has taken such a drastic step of approaching the Court for nullity or decree of divorce. If such explanation would have come forward enumerating probability of circumstances or ground to

hold that the petition is filed on a false ground, then the claim of the husband for divorce would have been dismissed. Thus, we do not find any good reason to set aside the judgment and order passed by the Judge, Family Court.

25. In the result, the appeal is dismissed. The Cross-

Objection is also dismissed. No order as to costs.

APTE

JUDGE

JUDGE